

Syllabus

(a) In *Bivens*, the Court held that it had authority to create a damages action against federal agents for violating the plaintiff’s Fourth Amendment rights. Over the next decade, the Court also fashioned new causes of action under the Fifth Amendment, see *Davis v. Passman*, 442 U. S. 228, and the Eighth Amendment, see *Carlson v. Green*, 446 U. S. 14. Since then, however, the Court has come “to appreciate more fully the tension between” judicially created causes of action and “the Constitution’s separation of legislative and judicial power,” *Hernández v. Mesa*, 589 U. S. —, —, and has declined 11 times to imply a similar cause of action for other alleged constitutional violations, see, e. g., *Chappell v. Wallace*, 462 U. S. 296; *Bush v. Lucas*, 462 U. S. 367. Rather than dispense with *Bivens*, the Court now emphasizes that recognizing a *Bivens* cause of action is “a disfavored judicial activity.” *Ziglar v. Abbasi*, 582 U. S. 120, 135.

The analysis of a proposed *Bivens* claim proceeds in two steps: A court asks first whether the case presents “a new *Bivens* context”—i. e., is it “meaningful[ly]” different from the three cases in which the Court has implied a damages action, *Ziglar*, 582 U. S., at 139, and, second, even if so, do “special factors” indicate that the Judiciary is at least arguably less equipped than Congress to “weigh the costs and benefits of allowing a damages action to proceed.” *Id.*, at 136. This two-step inquiry often resolves to a single question: whether there is any reason to think that Congress might be better equipped to create a damages remedy. Further, under the Court’s precedents, a court may not fashion a *Bivens* remedy if Congress already has provided, or has authorized the Executive to provide, “an alternative remedial structure.” *Ziglar*, 582 U. S., at 137. Pp. 490–493.

(b) The Court of Appeals conceded that Boule’s Fourth Amendment claim presented a new *Bivens* context, but its conclusion that there was no reason to hesitate before recognizing a cause of action against Agent Egbert was incorrect for two independent reasons. Pp. 493–498.

(1) First, the “risk of undermining border security provides reason to hesitate before extending *Bivens* into this field.” *Hernández*, 589 U. S., at —. In *Hernández*, the Court declined to create a damages remedy for an excessive-force claim against a Border Patrol agent because “regulating the conduct of agents at the border unquestionably has national security implications.” *Id.*, at —. That reasoning applies with full force here. The Court of Appeals disagreed because it viewed Boule’s Fourth Amendment claim as akin to a “conventional” excessive-force claim, as in *Bivens*, and less like the cross-border shooting in *Hernández*. But that does not bear on the relevant point: Permitting suit against a Border Patrol agent presents national security concerns that foreclose *Bivens* relief. Further, the Court of Appeals’ analysis betrays the pitfalls of applying the special-factors analysis at